1950

Executive Order.

Paragraphs 663 to 671, 686, 687, and 692 of the Consular Regulations of 1896 are hereby amended to read as follows:

PARAGRAPH 663.

Consolidating invoices. Merchandise purchased or agreed to be purchased for export to the United States, must not be included in the same invoice with merchandise obtained otherwise than by purchase or agreement of purchase.

An invoice shall include only one shipment of merchandise from the same consignor to the same consignee. Merchandise shipped to different consignees must not be included in the same invoice, but merchandise purchased or agreed to be purchased in the United States and shipped to a branch house or agent of the shipper for distribution or delivery to two or more ultimate consignees, may be included in a single invoice.

Merchandise purchased or manufactured in different consular districts in the same country and assembled for shipment to one consignee in the same vessel may be included in one consular invoice at the point of shipment.

In such cases the certified invoice should have attached thereto the original bills or invoices, if there be any, or extracts therefrom, showing the price paid or to be paid for each purchase or consignment. (Paragraph W, Section 3, Act of October 3, 1913).

PARAGRAPH 664.

Forms of invoice to be used. The shipper's declaration upon invoices of merchandise shipped in pursuance of a purchase or an agreement of purchase differs materially from the shipper's declaration on merchandise shipped otherwise than by purchase or agreement for its purchase. Two forms of declaration have therefore been prescribed for the use of the shipper:

1. The declaration to be endorsed upon invoices of merchandise which has been shipped in pursuance of a purchase or an agreement to purchase. (Form No. 138).

2. The declaration to be made on the shipment of merchandise otherwise than by purchase or agreement for its purchase. (Form No. 139).

Merchandise must be invoiced upon the purchase form of invoice (Form No. 138), when the price or amount to be paid or remitted therefor is fixed and determined at the time of or prior to the shipment of the merchandise, whether or not the merchandise is shipped directly to the purchaser or is shipped to an agent of the seller or to the seller's branch house in the United States for delivery. Such invoice must show the price paid or agreed to be paid for the merchandise, whether constituting the price for the merchandise delivered in the United States or otherwise. The shipper may, however, indicate upon his invoice, by marginal notations, in parallel columns, or otherwise, what he considers to be the market value of such merchandise in the principal markets of the country from which it is exported at the time of exportation.

Consuls should satisfy themselves that the proper form of invoice is used, and may, if necessary, require documentary evidence of the nature of the transaction.

PARAGRAPH 665.

In what currency stated. If the merchandise has been purchased or agreed to be purchased for export to the United States, the invoice must be made out in the currency paid or agreed to be paid therefor.

If the merchandise is consigned for sale in the United States and is not shipped pursuant to a contract of purchase, the invoice must state the market value in the standard coin currency of the country from which the merchandise is exported, although a depreciated currency may be in circulation there. (See Article 692).

PARAGRAPH 666.

Description of goods. The invoice must contain a correct description of the merchandise, using in each item the name, if any, by which the particular variety is known to the trade in the country of production or exportation. The description should show its kind, quality, component parts, and such other characteristics as will enable a person not an expert to identify the merchandise as it is sold in the foreign market, and will assist consular and appraising officers in detecting any departure from the actual market value thereof. (Treasury Decisions Nos. 9705, 10608, 13005, 14530, 14686).

The contents and value of the case or package must be separately specified on the invoice. Attached to or included in the invoice must be a statement for statistical purposes specifying the merchandise in the terms of the detailed list or enumeration prescribed by the Secretary of the Treasury and the Secretary of Commerce, as required by paragraph F of section III, act of October 3, 1913. This specification must show the total quantity and value of each kind of article included in the invoice.

Vague and misleading specifications should be avoided, and if insisted upon, should be the occasion for a special inquiry and report by the Consul. Such specifications may result in expensive complications to the importer and delay the passing of the goods through the customs. Invoices must express the quantities of the merchandise in weights and measures of the country of exportation, and may be made out in English or in the language of that country. (Treasury Decisions Nos. 13222, 16447, 22902).

PARAGRAPH 667.

Invoices to be signed. If the merchandise is shipped in pursuance of a purchase or agreement to purchase, the invoice must be signed by the seller or purchaser, or by his duly authorized agent. If it is shipped on consignment for sale or otherwise than in pursuance of a purchase or agreement for its purchase, the invoice must be signed by the manufacturer or owner, or by his duly authorized agent.

The signature may be affixed to the invoice at the shipper's place of business, at the consular office or elsewhere. (Paragraph C, section III, Act of October 3, 1913, T. D. 16380).

PARAGRAPH 668.

Shipper's declaration. At or before the shipment of the merchandise the invoice must be produced (in person or through the mails or by messenger) to the consular officer of the United States for the consular district in which the merchandise was manufactured, pur-

chased or agreed to be purchased, or assembled for shipment, as the case may be, for export to the United States; and shall have indorsed thereon when so produced, if shipped in pursuance of a purchase or agreement for purchase, a declaration signed by the purchaser, seller or the duly authorized agent of either of them, in the following form:

FORM 138.

Declaration to be indorsed on the invoice and signed by the purchaser or seller, or by the duly authorized agent of either, where merchandise has been actually purchased or agreed to be purchased.

I, ... of .....
do solemnly and truly declare that I am the .....
(purchaser or seller or agent of purchaser or seller)
.....of the merchandise in the within invoice mentioned and described; that the said invoice is in all respects correct and true, and was made at the place named therein whence the said merchandise is to be exported to the United States of America; that said invoice contains a true and full statement of the time when, the place where, and the person from whom the same was purchased or agreed to be purchased, and the actual cost thereof, price actually paid or to be paid therefor; and all charges thereon; that no discounts or commissions are contained in said invoice but such as have been actually allowed thereon; that all drawbacks or bounties received or to be received are shown therein; that no different invoice of the merchandise has been or will be furnished to anyone, and that the currency in which the invoice is made out is that which was actually paid or to be paid for the said merchandise.

I further declare.....
.....
.....

I further declare that it is intended to make entry of said merchandise at the port of .....
in the United States of America.

Dated at..... the..... day of .....19.....

If the merchandise is shipped on consignment otherwise than in pursuance of a purchase or agreement for purchase the declaration shall be signed by the manufacturer or owner or the duly authorized agent of either of them in the following form:

FORM 139.

Declaration to be indorsed on the invoice and signed by the manufacturer or owner or the duly authorized agent of such manufacturer or owner, where merchandise is consigned for sale in the United States, or shipped otherwise than in pursuance of a purchase or agreement for its purchase.

I, ... of ....., do solemnly and truly declare that I am the (1) ..... of the merchandise in the within invoice mentioned and described; that the said invoice is in all respects correct and true, and was made at (2) ....., whence said merchandise is to be exported to the United States, that said invoice contains the actual market value or wholesale price of the said merchandise at the date hereof in

the principal market of (3).....; that said actual market value is the price at which the merchandise described in the invoice is freely offered for sale to all purchasers in said markets, and that it is the price which I would have received, and was willing to receive, for such merchandise sold in the ordinary course of trade in the usual wholesale quantities, and that it includes all charges thereon and the actual quantity thereof, and that no different invoice of the merchandise mentioned in the said invoice has been or will be furnished to anyone.

I further declare.....

.....

.....

And I further declare that it is intended to make entry of said merchandise at the port of ....., in the United States of America.

.....

(1) Manufacturer or owner.
(2) Name the place from which the merchandise is to be exported to the United States.
(3) Name the country from whence exported.

PARAGRAPH 669.

Invoice specifications. Goods purchased or agreed to be purchased. (Form 138).

The invoice must set forth the sale price and separately specify all charges and whether or not included in the sale price.

The charges to be specified shall include:

1. Insurance; commissions; brokerage; inland freight; packing charges, including boxing, tilloting, cartons, packing, and similar charges.

2. The amount of all duties remitted, drawback or bounties received or to be received upon the exportation of the goods.

3. When it is impracticable for the shippers to specify any of such charges because unascertained at the time of shipment, to be paid by the consignee, or for other reasons, such charges may be omitted and the cause of the omission stated.

Goods shipped otherwise than on purchase or agreement to purchase. (Form 139).

The invoice must set forth the actual market value in the usual wholesale quantities in the principal markets of the country of exportation at the time of exportation in their condition packed ready for shipment, and shall include or separately specify the cost of inland freight, if any, and packing charges, including boxing, tilloting, cartons, packing, and similar charges.

PARAGRAPH 686.

Consular notations. If, on examination of the invoice, the consul shall be of the opinion that any of the prices or values therein stated are incorrect or are less than the true market value of the merchandise, he shall state the correct prices or values under the heading "Consular Notations."

Even when the price of merchandise purchased or agreed to be

purchased for export is correctly stated in the invoice, the consul should note on the duplicate and triplicate invoices any difference between the price paid and the market value as sold for consumption in the country of exportation in the usual wholesale quantities.

The consul should also state the amount of any duty, internal revenue or excise tax remitted or drawback allowed on the exportation of the merchandise.

PARAGRAPH 687.

Explanation of Notations. The consul should, in general, explain and justify his notations on the invoice in a letter to the collector of customs at the port of entry, which letter may be either attached to the triplicate copy of the invoice or sent separately. (T. D. 12283). The appraiser shall inform the consul of the return of value made by him on any invoice bearing consular notations of value.

The consul is to be directly notified in all cases where the invoice values are advanced on appraisement. (T. D. 16867).

PARAGRAPH 692.

Currency certificates. The price of merchandise obtained by purchase or shipped pursuant to an agreement of purchase must be stated in the currency actually paid or agreed to be paid therefor; and when the currency paid or agreed to be paid is depreciated, a currency certificate (Form No. 144) must be attached to the invoice showing the percentage of depreciation as compared with the corresponding standard coin currency and the value in such standard coin currency of the total amount of the depreciated currency paid for merchandise included in the invoice. (Rev. Stat. sec. 2903; T. D. 14287, 17252). This certificate should show, not the value of the depreciated currency in money of account of the United States, but its value in the terms of the standard coin currency in comparison with which the currency used in the purchase is depreciated. (T. D. 11314, 12399, 14107, 17170).

In the assessment of duty the currency of the invoice is reduced to the money of account of the United States upon the basis of the values of foreign coins at the date of shipment, as proclaimed by the Secretary of the Treasury for the 1st day of January, April, July, and October of each year. (Tariff of 1894, sec. 25; T. D. 16921). The date of the consular certification of any invoice shall, for the purposes of this section, be considered the date of exportation. (Tariff of 1894, sec. 25). In the absence of a currency certificate no allowance will be made for depreciated currency. (T. D. 15435).

When an invoice is certified by a consul of a nation at the time in amity with the United States, or by two respectable merchants, as provided by section 2844, Revised Statutes, the currency certificate required by section 2903, Revised Statutes, may be issued by the foreign consul or the two respectable merchants who certify the invoice.

For statistical purposes currency certificates are required for all invoices of merchandise purchased and paid for in depreciated currency, without regard to the dutiable or nondutiable character of the merchandise. (T. D. 14287. T. D. 23735).

Paragraphs 670 and 671 are revoked.

These amendments are to become effective July 1, 1914.

WOODROW WILSON

THE WHITE HOUSE,
May 28, 1914.

[No. 1950.]